

**SUPERIOR COURT, STATE OF CALIFORNIA  
COUNTY OF SANTA CLARA**

**Department 22, Honorable Beth McGowen Presiding**

Farris Bryant, Courtroom Clerk  
191 North First Street, San Jose, CA95113  
Telephone: (408) 882-2340

**To contest a tentative ruling, you must:**

1. Call (408) 808-6856 before 4:00 P.M. and leave a voicemail message containing the information described below, and
2. Notify the other side before 4:00 P.M. that you will appear at the hearing to contest the tentative ruling.

**In the voicemail message, please state your case name, case number, the name of the attorney, who you represent (Plaintiff or specific defendant) and contact number. It would also be helpful if you could identify the specific portion or portions of the tentative ruling that will be contested.**

**PLEASE NOTE:**

- If you do not notify the Court and/or opposing side as required by California Rule of Court, rule 3.1308(a)(1) and Civil Local Rule 8(E), the Court will not hear argument and the tentative ruling will be adopted even if all parties appear at the hearing.
- Sending an email to the department or to the Complex Clerk will no longer suffice to constitute notice to the Court of the need for a hearing regarding a tentative ruling.

**Court Reporters are not provided.** Please consult our Court's website, [www.scscourt.org](http://www.scscourt.org), for the rules, policies, and required forms for appointment by stipulation of privately-retained court reporters.

- **Parties can appear either in person or remotely.** All remote appearances must be made through UDC, unless otherwise arranged with the Court. Please go to <https://santaclara.courts.ca.gov/online-services/remote-hearings> to find the appropriate link. Also, please note that that you must register in advance to appear remotely.
- As a reminder, state and local Court Rules prohibit recording of court proceedings without a Court order. This prohibition applies while in the courtroom and while appearing remotely.

**DATE: June 11, 2026 TIME: 1:30 P.M.**

**PREVAILING PARTY SHALL PREPARE THE ORDER  
UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))**

| LINE #                  | CASE #     | CASE TITLE                                                                                                            | RULING                                                                                                                                                         |
|-------------------------|------------|-----------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <a href="#">LINE 1</a>  | 19CV353132 | In Re HPE Enterprise Services-DXC Technology Co. Merger Litigation (LEAD CASE; Consolidated With Case No. 19CV359073) | Hearing: Motion for Approval and Attorney's Fees GRANTED<br><br>Click on line 1 for tentative ruling                                                           |
| <a href="#">LINE 2</a>  | 19CV353132 | In Re HPE Enterprise Services-DXC Technology Co. Merger Litigation (LEAD CASE; Consolidated With Case No. 19CV359073) | Hearing: Motion hearings<br><br>See above                                                                                                                      |
| <a href="#">LINE 3</a>  | 21CV375255 | Johnson v. SCK Ilara Investors, LLC (Class Action)                                                                    | Motion: Preliminary Approval is GRANTED<br><br>Click on line 3 for tentative ruling                                                                            |
| <a href="#">LINE 4</a>  | 24CV443643 | Suchite v. HE&C Tea Pot Inc. (PAGA)                                                                                   | Motion: Leave to Amend GRANTED<br><br>Click on line 4 for tentative ruling                                                                                     |
| <a href="#">LINE 5</a>  | 25CV464854 | CAROLYN MCKINNEY et al vs APPLE, INC., a Delaware corporation                                                         | Hearing: Demurrer is OVERRULED<br><br>Parties Ordered to Appear, either in person or remotely, for case management<br><br>Click on line 5 for tentative ruling |
| <a href="#">LINE 6</a>  | 25CV465406 | CESAR AVIGLIANO et al vs APPLE, INC., a Delaware corporation                                                          | Hearing: Demurrer                                                                                                                                              |
| <a href="#">LINE 7</a>  | 25CV465597 | THOMAS KOZIK et al vs APPLE, INC., a Delaware corporation                                                             | Hearing: Demurrer                                                                                                                                              |
| <a href="#">LINE 8</a>  | 25CV466084 | ZOVIK SERENGULIAN et al vs APPLE, INC., a Delaware corporation                                                        | Hearing: Demurrer                                                                                                                                              |
| <a href="#">LINE 9</a>  | 25CV466507 | KRISTIN ELBERT et al vs APPLE, INC., a Delaware corporation                                                           | Hearing: Demurrer                                                                                                                                              |
| <a href="#">LINE 10</a> | 25CV466612 | Adriana Scott et al vs APPLE, INC., a Delaware corporation                                                            | Hearing: Demurrer                                                                                                                                              |